

Court No. - 32

Case :- WRIT - C No. - 4999 of 2016

Petitioner :- Mahesh Chandra

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Kripa Shankar Bajpai, Kamendra Pal Singh

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Rakesh Tiwari, J.

Hon'ble Shashi Kant, J.

The case is taken up in the revised list. None appears to argue the case. The writ petition is therefore dismissed for want of prosecution.

Order Date :- 11.2.2016

RCT/-

Court No. - 37

Case :- WRIT - C No. - 4999 of 2016

Petitioner :- Mahesh Chandra

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Kripa Shankar Bajpai,K.S.
Jadaun,Kamlendra Pal Singh

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Tarun Agarwala,J.

Hon'ble Vinod Kumar Misra,J.

Heard learned counsel for the petitioner.

Learned counsel for the respondent is not present.

The cause shown is sufficient.

The Civil Misc. Recall Application No. 53095 of 2016 is allowed. The order dated 11.2.2016 is recalled.

The writ petition is restored to its original number.

List this case in the next cause list.

Order Date :- 16.3.2016

AS

(Vinod Kumar Misra, J.)

(Tarun Agarwala, J.)

Court No. - 3

Case :- WRIT - C No. - 4999 of 2016

Petitioner :- Mahesh Chandra

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Kripa Shankar Bajpai,K.S.
Jadaun,K.Singh,Kamlendra Pal Singh

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Krishna Murari, J.

Hon'ble Vinod Kumar Misra, J.

Supplementary affidavit filed by the petitioner is taken on record.

It is contended that recovery of outstanding dues is being enforced after 11 years and in view of provisions of Clause 6.15 (b) of the Electricity Supply Code no sum can be recovered after a period of two years from the date when such amount becomes due unless it has been shown continuously as recoverable as arrears of charges of electricity. Specific averment in this regard made by the petitioner is that petitioner has not received any communication or bill ever since last 11 years. Reliance in support of the contention that recovery is time barred has been placed on a decision of a Division Bench of this Court in the case of **Satya Narayan Vs. U. P. Power Corporation Limited, ALR 2013(5) 44.**

Prima facie, there appears to be force in the submission and the matter requires scrutiny.

Sri S. C. Pandey, who has accepted notice on behalf of respondents no. 2 and 3, prays for and is allowed three weeks' time to file counter affidavit.

Rejoinder affidavit, if any, may be filed within two weeks thereafter.

List after expiry of the aforesaid period.

Considering the facts and circumstances, until further orders of this Court, further proceedings for recovery against the petitioner in pursuance of the impugned citation shall remain stayed.

Order Date :- 6.4.2016

Dcs

Court No. - 29

Case :- WRIT - C No. - 4999 of 2016

Petitioner :- Mahesh Chandra

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Kripa Shankar Bajpai, K.S.

Jadaun, K. Singh, Kamendra Pal Singh

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Tarun Agarwala, J.

Hon'ble Vipin Sinha, J.

List has been revised.

Learned counsel for the petitioner is not present.

The case is passed over for the day.

List in the next cause list.

Order Date :- 10.8.2016

Anand

(Vipin Sinha, J.)

(Tarun Agarwala, J.)

Court No. - 29

Case :- WRIT - C No. - 4999 of 2016

Petitioner :- Mahesh Chandra

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Kripa Shankar Bajpai,K.S.
Jadaun,K.Singh,Kamlendra Pal Singh

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Tarun Agarwala,J.

Hon'ble Vipin Sinha,J.

List in the next cause list showing the name of Sri S.C.Pandey instead of Sri Baleshwar Chaturvedi as counsel for the respondents.

Order Date :- 23.8.2016

AKJ

(Vipin Sinha,J.)

(Tarun Agarwala,J.)

Court No. - 29

Case :- WRIT - C No. - 4999 of 2016

Petitioner :- Mahesh Chandra

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Kripa Shankar Bajpai, K.S.
Jadaun, K. Singh, Kamendra Pal Singh

Counsel for Respondent :- C.S.C., S.C. Pandey

Hon'ble Tarun Agarwala, J.

Hon'ble Vipin Sinha, J.

Three weeks' further time is allowed to the respondents to file a counter affidavit.

List thereafter.

Order Date :- 12.9.2016

Bhaskar

(Vipin Sinha, J.) (Tarun Agarwala, J.)

Court No. - 29

Case :- WRIT - C No. - 4999 of 2016

Petitioner :- Mahesh Chandra

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Kripa Shankar Bajpai,K.S.
Jadaun,K.Singh,Kamlendra Singh Jadaun

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Tarun Agarwala,J.

Hon'ble Vipin Sinha,J.

Three weeks further time is allowed to the respondents to file a counter affidavit.

List thereafter showing the name of Sri S. C. Pandey as counsel for the respondents.

Order Date :- 5.10.2016

YK

(Vipin Sinha, J.) (Tarun Agarwala, J.)

Court No. - 29

Case :- WRIT - C No. - 4999 of 2016

Petitioner :- Mahesh Chandra

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Kripa Shankar Bajpai,K.S.
Jadaun,K.Singh,Kamlendra Singh Jadaun

Counsel for Respondent :- C.S.C.,Baleshwar
Chaturvedi,S.C.Pandey

Hon'ble Tarun Agarwala,J.

Hon'ble Pramod Kumar Srivastava,J.

Three weeks' further time is allowed to the respondents to file a counter affidavit.

List thereafter.

Order Date :- 2.11.2016

Bhaskar

(Pramod Kumar Srivastava, J.) (Tarun Agarwala, J.)

Court No. - 29

Case :- WRIT - C No. - 4999 of 2016

Petitioner :- Mahesh Chandra

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Kripa Shankar Bajpai, K.S.
Jadaun, K. Singh, Kamendra Singh Jadaun

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi, S.C. Pandey

Hon'ble Tarun Agarwala, J.

Hon'ble Siddhartha Varma, J.

The case is passed over on the illness slip of
learned counsel for the petitioner.

Order Date :- 24.11.2016

vkj

(Siddhartha Varma J.) (Tarun Agarwala, J.)

Court No. - 29

Case :- WRIT - C No. - 4999 of 2016

Petitioner :- Mahesh Chandra

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Kripa Shankar Bajpai,K.S.
Jadaun,K.Singh,Kamlendra Singh Jadaun

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi,S.C.Pandey

Hon'ble Tarun Agarwala,J.

Hon'ble Siddhartha Varma,J.

The case is passed over on the illness slip of
learned counsel for the petitioner.

Order Date :-16.12.2016

I.A.

(Siddhartha Varma,J.)

(Tarun Agarwala,J.)

Court No. - 39

Case :- WRIT - C No. - 4999 of 2016

Petitioner :- Mahesh Chandra

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Kripa Shankar Bajpai,K.S.
Jadaun,K.Singh,Kamlendra Singh Jadaun

Counsel for Respondent :- C.S.C.,Baleshwar
Chaturvedi,S.C.Pandey

Hon'ble Dilip Gupta,J.

Hon'ble Siddhartha Varma,J.

Learned counsel for the petitioners have again sent their illness slips.

List this petition on 14 February 2017 peremptorily.

Order Date :- 23.1.2017

SK

(Dilip Gupta, J.)

(Siddhartha Varma, J.)

Court No. - 39

Case :- WRIT - C No. - 4999 of 2016

Petitioner :- Mahesh Chandra

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Kripa Shankar Bajpai,K.S.
Jadaun,K.Singh,Kamlendra Singh Jadaun

Counsel for Respondent :- C.S.C.,Baleshwar
Chaturvedi,S.C.Pandey

Hon'ble Dilip Gupta,J.

Hon'ble Siddhartha Varma,J.

It is stated by the learned counsel for the petitioner that till date counter affidavit has not been served.

Respondents may file counter affidavit in three further weeks.

List this petition on 18 April 2017.

Order Date :- 23.3.2017

Akram

(Dilip Gupta,J.)

(Siddhartha Varma,J.)

Court No. - 40

Case :- WRIT - C No. - 4999 of 2016

Petitioner :- Mahesh Chandra

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Kripa Shankar Bajpai,K.S.

Jadaun,K.Singh,Kamlendra Singh Jadaun

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Shashi Kant,J.

Heard learned counsel for the petitioner and Sri S.C.Pandey, Advocate, for respondents no.2 and 3.

The petitioner admittedly had an electricity connection which he says had been taken for installing a 5 HP tubewell. The service connection number thereof is stated to be 2403/002140. However, the Electricity Department treats the said connection for a 10 HP motor. The petitioner disputes the same but the fact remains that the electricity connection was there.

The petitioner alleges that he also started a brick-kiln business which he shut down in the year 2003 whereafter he applied for a new electricity connection which is of the commercial category bearing connection no.7510/067056. The said connection and consumption of electricity is in the name of "Ram Sahai Gramudyog Sewa Sansthan". According to the petitioner the last bill received at the time of filing of the writ petition was 31st October, 2015 against which he has deposited the amount of Rs.37,706/-.

The petitioner then goes on to disclose that after he had applied for the above new connection, he had given an application in January, 2004 to the Electricity Department for

permanently disconnecting the old 5 HP connection No.2403/002140. The petitioner did not receive any notice against the same in spite of his request for permanent closure of the said connection and straightway, after 11 years, a demand bill of Rs.5,34,940/- dated 19th December, 2015 has been sent. The recovery citation has been issued pursuant to the same on 1st January, 2016 that have been challenged in the present writ petition.

The writ petition was dismissed in default on 11th February, 2016 and was restored on 16th March, 2016. On 6th April, 2016 a Division Bench of this Court passed the following interim order staying the proceedings of recovery against the petitioner which is extracted hereinunder :

“Supplementary affidavit filed by the petitioner is taken on record.

It is contended that recovery of outstanding dues is being enforced after 11 years and in view of provisions of Clause 6.15 (b) of the Electricity Supply Code no sum can be recovered after a period of two years from the date when such amount becomes due unless it has been shown continuously as recoverable as arrears of charges of electricity. Specific averment in this regard made by the petitioner is that petitioner has not received any communication or bill ever since last 11 years. Reliance in support of the contention that recovery is time barred has been placed on a decision of a Division Bench of this Court in the case of Satya Narayan Vs. U. P. Power Corporation Limited, ALR 2013(5) 44.

Prima facie, there appears to be force in the submission and the matter requires scrutiny.

Sri S. C. Pandey, who has accepted notice on behalf of respondents no. 2 and 3, prays for and is allowed three weeks' time to file counter affidavit.

Rejoinder affidavit, if any, may be filed within two weeks thereafter.

List after expiry of the aforesaid period.

Considering the facts and circumstances, until further orders of this Court, further proceedings for recovery against the petitioner in pursuance of the impugned citation shall remain stayed.”

Since then the respondents have not been able to file a counter affidavit in spite of the time having been granted.

From the record we do not find any material to establish that any order of permanent disconnection had been passed in relation to the earlier electricity connection of the petitioner bearing no. 2403/002140. There is also a dispute about the nature of the connection and load consumption between the petitioner and the respondent department.

No counter affidavit has been filed and the interim order continues to operate in favour of the petitioner.

In the above peculiar background, we do not find it necessary to keep this matter pending, inasmuch as, the question as to whether there was any permanent disconnection of the earlier consumer connection of the petitioner or whether the said connection was of a particular nature or not, are all questions of fact which have to be examined by the respondent no.3 as a billing dispute in terms of Clause 6.5 of U.P. Electricity Supply Code, 2005.

In such circumstances, we dispose of this writ petition with a direction to the third respondent to examine the aforesaid grievance of the petitioner who shall proceed to pass an appropriate order in accordance with law within six weeks

from the date of presentation of a certified copy of this order before him, which shall be filed by the petitioner within 10 days from today alongwith his objection in relation to the said recovery. It shall be open to the petitioner to take all such pleas including the plea of limitation before the Executive Engineer.

We further provide that the impugned recovery proceedings shall be subject to the outcome of the order to be passed by the Executive Engineer, as directed hereinabove.

Order Date :- 17.4.2018

KA